MAGISTRATES COURT of WESTERN AUSTRALIA
(CIVIL JURISDICTION)

GENERAL FORM OF AFFIDAVIT

FORM 2

Registry: Central Law Courts 501 Hay Street PERTH WA 6000 **Phone: 9425 2222** **Fax:**	**Case number: PER/GCLM/ 9493/2023**

Claimant	**AAI LIMITED (ACN 005 297 807) Level 28, 266 George Street BRISBANE QLD 4000 (Registered Office)**
Defendant	**FORWARD FOCUSED GROUP PTY LTD. (ACN 643 878 639) U25, 19 Malibu road, Safety Bay 6169**

I Simon Reid of 25/ 19 Malibu Road, Safety Bay 6169 WA, Director of Forward Focused Group pty ltd. have been duly affirmed and say on affirm the following:

1. I am the Defendant representing Forward Focused Group pty ltd. *(description of party)* in this case.

2.
Simon Reid AFFADAVIT FFG VS AAI LIMITED

Correction of material facts

1. 19th May 2022 an insurance policy was taken out by then CFO Mr. Rejaul Alam at Forward Focused Group (FFG) from GIO via GIO online portal.
2. An email was then sent to Mr. Alam on 19th May 2022 from GIO confirming The policy being taken out policy number WCW005631535 (Policy Attached)
3. Policy dated 19th of may 2022, not 30th April.
4. Payments were made at monthly intervals of $1049.12 from JUL 2022-Jan 2022 totalling $7,343.84 (evidence attached) plus 2 other payments from an ANZ FFG bank account totalling $2098.24 equating to a sum of $9442.08 paid by FFG confirmed in an email by GIO.
5. Email sent to Giociservice@gio.com.au requesting cancellation of policy with cancellation form completed on 23rd November 2022.(evidence attached)
6. Follow up email sent on 25th November 2022.(evidence attached)
7. Payments continued to be taken out until Jan 2023 despite cancelation request to GIO.
8. FFG requested bank to cease automatic payments and place a stop to Gio in Feb 2023.
9. Gio continued attempts to take payments but bank dishonoured them.
10. From our perspective we had cancelled the policy in November 2022 and continued to be billed a total of $3147.36 after cancellation, therefore it is our view that the claimant owes the defendant $3147.36 plus interest and costs.

16/11/2023

11. In relation to the claimant alleging payments owed to them we wish to defend these claims. The claimant has referenced Policy Number **WCW005608540** and failed to mention Policy Number **WCW005631535.**

12. The 1st policy - **WCW005608540-** was set up by broker MMP-JJS, and they resigned from the policy as the company wished to deal directly with GIO Period of insurance - 31/03/2022 to 31/03/2023 Premium - $17,085.75 (fully o/s). This was cancelled as Our Company did not elect to use the services and quote by the broker (JJS insurance).

13. The 2nd policy - **WCW005631535** -was set up online by FFG then CFO Mr. Rejaul Alam on 19/05/2022. Period of insurance - 19/05/2022 Annual premium - **$12589.50** (on monthly instalments - about 9 instalments paid as confirmed in an email by GIO representative Miss.Komal Shah (please see attached file) instalments charged at rate of $1049.12 totalling **$9442.08**

14. In January 2023 the last instalment paid instalment cleared, GIO advised they will transfer all the premium paid on policy WCW005631535 (2nd policy) to WCW005608540 (Broker negotiated policy which was not taken out by FFG) and cancel this policy as duplicated.

15. We do not agree to paying for a policy initiated and brokered by the broker JJS insurance which we dd not take out and continued to negotiate another new policy. This was done by GIO on their own accord.

16. GIO representative Miss Komal stated in email attached " Because the original policy **(WCW005608540)** was set up from 31/03/2022 and if you were already employing from 31/03/2022 we will need to have that policy and request formal cancellation of that policy." She further apologised for the confusion stating " Apologies for the confusion with these policies and for any inconvenience. I await to receive the completed cancellation form and actual wages declaration."

Miss Vida Reid then director of FFG sent an email to GIO representative requesting for only one policy to be kept whether it changing the dates of old policy to be the same as new policy then she will fill in the form. Meaning no changes in costs would take place. Miss Reid stated in an email dated 27th January 2022 to Miss Komal " I have a few concerns re just swaping the new policy to the old one :-

- The old policy is The 1st policy - **WCW005608540-** was set up by broker MMP-JJS, and they resigned from the policy as you wished to deal directly with GIO Period of insurance - 31/03/2022 to 31/03/2023 Premium - $17,085.75 (fully o/s

- The new policy is The 2nd policy - **WCW005631535** -was set up online by yourself on 19/05/2022 Period of insurance - 19/05/2022 Annual premium - $12589.50 (on monthly instalments - about 9 instalments paid- the most recent instalment waiting to be cleared on 19/01/22) **There is $4496.25 difference in annual price.**
- Could you also change the price on old policy to match our current one ?

GIO representative Miss Komal replied with "WCW005608540– estimated wages are $500,000 – $17985.00 (inclusive of GST)– sorry I had a typo below

6/11/2023

WCW005631535 – estimated wages are $350,000 – $12589.50 (inclusive of GST)" Concluding her outcome of price based on initial policy taken out by broker not by FFG which was cancelled prior to taking out a new policy.

17. FFG has not taken out policy WCW005608540
18. FFG was negotiating to take out policy **WCW005631535.**
19. FFG received incorrect details on policy **WCW005631535 and requested its correction**.
20. The corrections were not made and not sent to FFG despite then Director Miss. Reid's request to GIO to do so.

21. Further letters around this matter were not received by myself as we had vacated the office listed as registered address in November 2022 and incorrectly amended the address on Asic, and moved house (personal address) in/about June 2023.

I Simon Reid of 25/19 Malibu Road Safety Bay 6169 Director of Forward Focused Group (FFG) Affirm the above statement.

AFFIRMED
at ..... Forrestfield library ..... this ..... 16th ..... day
of ..... November ..... 20..2023.... in the presence of

....
~~Registrar~~/Justice of the Peace~~/other~~ authorised witness Deponent
Authorised Witness Name: Christine J. Lightowler
Authorised Witness qualification: Justice of the Peace
WA Reg. No: 30106

Each page is to be dated and signed by the person making the affidavit and the witness.

Tick [☒] appropriate box

Lodged by	☐ Claimant or claimant's lawyer ☐ Defendant or defendant's lawyer Other ☐			
Address for service	25/19 Malibu Road, safety Bay, 6169 WA			
Contact details	Telephone: 0409751638	Lawyer's ref:	Fax:	E mail: Simon@ffg.net.au

as at 01/09/2008